

Vinay Bareja & Ors vs The State Nct Of Delhi & Anr on 4 July, 2022

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ W.P.(CRL) 1418/2022
VINAY BAREJA & ORS.

Through:

.....
Mr. Mukesh Kumar Solanki
Amit Malik, Advs. along
petitioners.

versus

THE STATE NCT OF DELHI & ANR.

..... Respondent

Through: Mr. Karan Dhalla, Adv. for Mr. Av
Singh, ASC for State/R-1.
Ms. Bhavya Chauhan, Adv. for R-2.
R-2 in person.
IO PSI Durgesh, PS Binda Pur.

CORAM:

HON'BLE MS. JUSTICE POONAM A. BAMBA
ORDER

% 04.07.2022 1.0 This is a writ petition filed under Article 226/227 of Constitution of India read with Section 482 of Cr.PC for quashing of FIR No. 932/2021, dated 03.11.2021 under Sections 498A/406/34 Indian Penal Code, 1860, PS Binda Pur and all consequential proceedings.

2.0 Respondent no. 2 is present in person and is identified by the IO. 2.1 It is submitted that petitioners and respondent no.2 have resolved their disputes and differences vide Memorandum of Understanding dated 07.01.2022 (filed as Annexure-D with the petition). It has been agreed that the petitioner no. 1 shall pay a total amount of Rs.25 lacs in full and final settlement of all the claims of the respondent no. 2 arising out of their marriage besides return of dowry articles including jewellery. It is also submitted that the dowry articles including jewellery have already been handed over to respondent no. 2, which is confirmed by the respondent no. 2, who is present in person.

2.2 It is further submitted that a total amount of Rs.25 lacs has already paid in 03 installments. Rs.10 lacs was paid to the respondent no. 2 at the time of first motion petition u/s. 13 B(1) of Hindu Marriage Act (in short „HMA) Thereafter, a sum of Rs.7.5 lacs was paid at the time of second motion petition u/s. 13 B(2) of HMA It is also submitted that the marriage between the parties stands dissolved vide judgment and decree of divorce dated 11.04.2022, which has been filed along with this petition as Annexure D. It is also submitted that balance amount of Rs.7.5 lacs was also paid at the time of signing of the present petition. Respondent no. 2 admits that she has already received the total amount of Rs.25 lacs. 3.0 Parties also submit that as agreed, the respondent no. 2 has already withdrawn her petition u/s. 125 Cr.PC.

4.0 Respondent no. 2 submits that she has no objection to quashing of this FIR in view of compliance of all the terms and conditions of the settlement. 5.0 Ld. Prosecutor on behalf of the State submits that State also has no objection to the quashing of the FIR.

6.0 In view of the above facts and circumstances, I am of the considered opinion that continuation of criminal proceedings will be an exercise in futility. Rather, quashing of FIR would give quietus to the matter.

6.1 Thus, the present of FIR No. 932/2021, dated 03.11.2021, under Sections 498A/406/34 Indian Penal Code, 1860, PS Binda Pur and all consequential proceedings arising therefrom, if any are hereby quashed. 7.0 The present petition is disposed of accordingly. 8.0 All pending applications are closed.

POONAM A. BAMBA, J JULY 4, 2022/manju Click here to check corrigendum, if any